

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,  
AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL  
FILING OR CYBERSECURITY GUIDE**

# **Public Motion for Limited Sealing on Appeal**

**Filed:** March 2, 2026 **Synthetic docket:** SYN-CA4-26-CV-4106 **Movant:** United States  
Department of Energy

DOE moves under Fourth Circuit Local Rule 25(c) for interim, document-specific sealing of four controlled filings: the Sealed Highlighted Opening Brief of Open Grid Archive, the Sealed Highlighted Response Brief of DOE, the Sealed Highlighted Reply Brief of Open Grid Archive, and the Sealed Joint Appendix Excerpts and Index. Each will have an equal-page public redacted counterpart filed on the public docket.

The requested restriction does not extend to the motion, the accompanying certificate, docket metadata, public briefs, public appendix excerpts, oral argument notices, or later public judicial decisions. DOE does not seek closure of the appeal, a secret docket, or an inference that every sentence within a controlled filing is exempt from public access.

The paired versions use only fabricated field representations. Public versions display approved category notices. Controlled versions use harmless inert labels so the court can examine placement and legal argument without receiving a real instruction or protected system fact. Restriction is sought to preserve the record's modeled distinction while the merits and access questions are adjudicated.

The motion asks for an interim order, not a permanent entitlement or a ruling that the district court's broad sealing was proper.

## **Materials and Particular Need**

The controlled opening brief places invented labels beside Open Grid's discussion of DOE's claimed 7(E) and 7(F) categories. The controlled response presents DOE's asserted functional relationships in the same sanitized vocabulary. The controlled reply tests whether those relationships cure the public Vaughn deficiencies. The controlled appendix reproduces selected lower-record semantic placements needed to compare the parties' descriptions.

Although every label is fictional and inert, unrestricted publication would collapse the designed public-versus-controlled distinction that this appeal must evaluate. That collapse would prevent meaningful exercise of the very access question presented. The temporary interest is therefore preserving an adjudicative comparison, not preventing disclosure of any authentic cyber fact.

The need differs by document. The briefs require limited treatment only where the controlled vocabulary appears or where surrounding prose would reveal its modeled location. The appendix requires it only for the selected controlled excerpts. General legal standards, record arithmetic, party identities, requested relief, and public explanations remain available in the redacted counterparts.

DOE requests no restriction for material already stated in public declarations or indexes. The proposed order should identify the four documents individually and should not use their shared subject matter as a basis for sealing unrelated submissions.

## **Public Counterparts and Less Restrictive Alternatives**

For every controlled filing, the parties will file a public counterpart with the same number of pages and corresponding page subjects. The prose will be independently composed. Where a field type matters, the public copy will use only an approved fictional notice rather than the inert controlled label. General facts, legal citations, disposition requests, and nonoperational reasoning will remain readable.

DOE considered filing only the public versions. That alternative would deprive the panel of the controlled semantic placements on which the parties' access arguments depend. DOE also considered seeking closure of entire briefing events. That approach would conceal far more than necessary and is not requested. A page-matched pair with limited access preserves public understanding while retaining the narrow comparison surface.

The public docket will show each title, filing date, party, and the existence of its counterpart. This motion and certificate will remain public. Any oral argument may discuss public propositions openly; if a controlled placement must be addressed, the panel can use a bounded procedure without identifying the inert word on the public record.

These alternatives reflect the document-specific approach required by Local Rule 25(c). They also permit later narrowing or unsealing if the court concludes that a particular passage needs no continued restriction.

## **Proposed Duration and Review**

DOE proposes that the four controlled filings remain restricted only during appellate adjudication and until a later order addresses their status. The restriction should be reviewed when the panel issues its merits decision, when the mandate issues, or sooner if the justification for a particular document changes. No indefinite closure is requested.

The parties may move to narrow the restriction. The court may direct a revised public counterpart, release an independently intelligible passage, or terminate access protection for one filing without affecting the remaining three. Conversely, nothing in the proposed duration prejudices whether a district court may make narrower findings on remand.

Public counterparts must remain accessible throughout. The motion does not authorize substitution of a blank placeholder, suppression of the public docket entry, or removal of public legal analysis. It also does not convert the inert labels into genuine protected information; their limited treatment serves only the exercise's adjudicative design.

At final review, the court should distinguish the legal conclusion sustaining any FOIA withholding from the separate question whether a judicial filing should remain restricted. Protection under a statutory exemption does not automatically determine the scope or duration of sealing. The requested interim order holds the comparison stable while allowing that independent decision to be made on a complete record.

## **Proposed Access Boundary**

DOE asks the court to adopt a session-limited policy for each of the four disclosures. A person's inclusion on the accompanying list establishes eligibility only; it does not create durable access. A grant must identify the particular controlled filing and the exact resolved pack closure for which viewing is allowed.

Under the proposed policy, an ordinary public load exposes only the public counterpart. The controlled asset remains unresolved. On an authorized open, the designated content-addressed store is checked for the expected path, size, digest, readability, and page count before a leased snapshot is presented. A citation common to both versions does not bypass those checks or reveal a controlled location.

Revocation ends the lease, removes the controlled row from the viewer, and restores the public-only projection. A grant for one brief does not extend to another brief or to the appendix. Reopening after revocation requires a new, valid session event under the same exact-closure condition.

This motion proposes an authored policy boundary for the synthetic record. It does not represent that any external product, court system, or deployment already implements the described controls. The court's order should preserve that distinction and avoid treating the policy text as a cybersecurity assurance.

## **Access List, Relief, and Certification**

Eligible viewers should be limited to Presiding Judge Vale, Judge Quill, Judge Reed, authorized chambers and Clerk's Office staff whose duties require review, and counsel of record Tamsin Roe, Leo Marr, and Corin Pell. Nila Quen, agency declarants, program personnel, and members of the public are not included merely because their names appear in the record.

DOE requests an order that identifies the four controlled filings, keeps their public counterparts available, adopts the temporary per-document access boundary, and reserves final access decisions. It does not request an order finding that all controlled prose is exempt, validating the district court's blanket approach, or authorizing the parties to add a real operational detail later.

Corin Pell certifies that the motion is public, contains no inert controlled label, and reveals no system value, command, credential, contact, vulnerability, technical pathway, or response instruction. The motion describes legal categories and an access model only. The accompanying certificate identifies the counterpart pairs and eligible viewers without supplying any secret.

Service was made on Tamsin Roe and Leo Marr through the synthetic appellate docket on March 2, 2026. Open Grid does not oppose maintaining the paired structure while reserving its challenge to any restriction broader or longer than particular findings support.